

2026 SCC OnLine All 5411

In the High Court of Allahabad⁺
(BEFORE ARINDAM SINHA AND SATYA VEER SINGH, JJ.)

Abhimanyu Singh ... Petitioner(s);

Versus

State of U.P. and 7 Others ... Respondent(s).

Writ - C No. - 10937 of 2026

Decided on April 9, 2026

Advocates who appeared in this case:

Counsel for Petitioner(s): Santosh Kumar Singh

Counsel for Respondent(s): C.S.C., Chetan Chatterjee

The Judgment of the Court was delivered by

ARINDAM SINHA, J. and SATYA VEER SINGH, J.:— With reference to earlier order dated 2-4-2026, Mr Chetan Chatterjee, learned advocate appearing for Respondents 3 to 8 (the supply company) files affidavit dated 5-4-2026 with copy served to Mr Santosh Kumar Singh, learned advocate appearing for petitioner.

2. Mr Chatterjee relies on clauses 4.5 (d) and 4.6 (e)(ii) and (iii) in Uttar Pradesh Electricity Supply Code, 2005. He submits, petitioner had initially opted to establish the connection requiring his client to only charge supervision costs. Subsequently, he wanted the supply to be given by his client (the supply company). Hence, there was revised estimate. It has been challenged in the writ petition. The challenge is without merit. The writ petition be dismissed.

3. Clauses (a) to (d) from Clause 4.5 are reproduced below.

"4.5 Inspection by Licensee:

The applicant along with the licensed contractor or his representative shall be present during the inspection. During the inspection, the Licensee shall:

- (a) Satisfy themselves regarding the work completion certificate and the test report submitted by the applicant.*
- (b) In consultation with the applicant, fix the point of supply and the place where meter and the MCB etc. shall be fixed.*
- (c) Estimate the distance between the point of supply and the nearest Distribution mains from where supply could be given.*
- (d) Determine if the supply line shall go over any property belonging to a third party. In such a case the applicant shall obtain no objection from the third party, in absence of which,*

the licensee may adopt a different route for which the applicant shall bear the cost differential.

.....”

Clause 4.6 (e)(ii) and (iii) is also reproduced below.

“4.6 Estimate

(e) (i)

(ii) If the work is to be done by the developer/applicant/Development Authority, the Licensee shall charge supervision charges (on the estimated labour cost, cost of material, material handling and storage/inventory, but excluding the system loading charges and the establishment costs), as a percentage of the normative estimates, specified in cost data book, which shall be deposited with the licensee before work begins.

For LT Loads upto 50 kW, if the supply released on HT on the request of consumers (in such cases, metering will be done on LT and billing as per LT tariff)-15%.

For Loads exceeding 50 KW (56 KVA) upto 3600 KW (4000 KVA)-15%.

For Loads exceeding 3600 KW upto 9000 KW (10,000 KVA)-8%

For Loads exceeding 9000 KW (10,000 KVA)-5%.

Notwithstanding the amended provision coming into effect from the date of notification, the supervision charge on cost of material charged earlier in the estimates before this amendment shall not be refunded back.

(iii) The Licensee shall commence the work after the applicant has deposited the full amount of the estimates.

.....”

Our understanding of above relied upon provisions is that the direct transmission from distribution main to point of supply is at cost of the licensee (the supply company). In event of objection requiring alternate route, the differential in cost is to be borne by applicant.

4. Prayer (a) in the petition is reproduced below.

“a) Issue a writ order or direction in the nature of mandamus directing the electricity department to immediate give electricity connection to the petitioner tube well in pursuance of the estimate amount paid by the petitioner a sum of Rs 1,19,368 on 18-8-2025 with immediate effect without any delay.”

Petitioner is facing objection from his neighbours on asserting, his property is landlocked. The supply company is directed to give particulars on fresh estimate, for petitioner to pay on the differential cost. Particulars are to be furnished to petitioner to show cost involved for setting up direct transmission between the distribution main and

point of supply as well as the longer route of transmission, necessitated by the objection(s), for demanding the estimate of cost from petitioner. In event it is less than amount already deposited by petitioner, the difference to be adjusted from future consumption bills. Otherwise, the excess will be informed to petitioner, for him to pay and obtain the supply.

5. Petitioner will communicate certified copy of this order to Respondent 6. Within two weeks of the communication, the exercise is to be completed and petitioner given the supply. This time line will stand automatically extended in case petitioner does not fulfill requirement of paying the excess, if demonstrated to be payable.

6. The writ petition is disposed of.

[†] At Allahabad

Disclaimer: While every effort is made to avoid any mistake or omission, this casenote/ headnote/ judgment/ act/ rule/ regulation/ circular/ notification is being circulated on the condition and understanding that the publisher would not be liable in any manner by reason of any mistake or omission or for any action taken or omitted to be taken or advice rendered or accepted on the basis of this casenote/ headnote/ judgment/ act/ rule/ regulation/ circular/ notification. All disputes will be subject exclusively to jurisdiction of courts, tribunals and forums at Lucknow only. The authenticity of this text must be verified from the original source.